UNITED STATES BANKRUPTCY COURT
MIDDLE DISTRICT OF LOUISIANA

IN RE: CHRISTOPHER SCOTT HOVEN

CASE NO. 19-10514

In re:

JOHN Q. SAMPLE,

Debtor.

PULL-A-PART LLC, Plaintiff

VERSUS

SAMPLE CREDITOR, LLC,

Plaintiff,

CHRISTOPHER SCOTT HOVEN, Defendant

v.

JOHN Q. SAMPLE,

Defendant.

Case No. 26-10000

Chapter 7

CHAPTER 7

Adversary Proceeding No. 26-01000

ADV. PROC. NO. _____

COMPLAINT ASSERTING NONDISCHARGEABILITY

COMPLAINT ASSERTING NONDISCHARGEABILITY OF DEBT

NOW INTO COURT, through undersigned counsel, comes plaintiff, PULL-A-PART LLC, who asserts this adversary proceeding against debtor, CHRISTOPHER SCOTT HOVEN, regarding the dischargeability of debtor and further respectfully represents:

Plaintiff Sample Creditor, LLC ("Plaintiff"), through undersigned counsel, asserts this adversary proceeding against the Debtor, John Q. Sample (the "Debtor"), regarding the dischargeability of a debt, and respectfully represents:

1.

1. Plaintiff is a creditor of the Debtor by virtue of an unpaid balance of $48,000.00 due

Plaintiff, PULL-A-PART LLC, is a creditor of debtor by virtue of a deposit on an under a written equipment lease between Plaintiff and Sample Equipment Services, LLC (the estimate for services to be performed, paid by the Plaintiff to Hoven's Heavy Equipment "Company"), of which the Debtor is the sole member and manager, together with interest, late LLC, of which defendant, CHRISTOPHER SCOTT HOVEN, is the manager and charges and reasonable attorney's fees as provided in that lease.

registered agent, on or about August 7, 2018. The amount owed to plaintiff is the principal

2. The Debtor is the defendant herein. He filed a voluntary petition under chapter 7 of sum of $12,372.00, together with judicial interest from the date of demand and reasonable the Bankruptcy Code on April 2, 2026, commencing the above-captioned case.

attorney's fees (as attached to a debt that is nondischargeable under 11 U.S.C. §523 and/or

3. This is an action to determine whether the debt described above is excepted from the 11 U.S.C. §727) and court costs for the following reasons:

Debtor's discharge under 11 U.S.C. § 523(a)(2)(B). It is brought under Federal Rule of

Bankruptcy Procedure 7001(6).

UNITED STATES BANKRUPTCY COURT
MIDDLE DISTRICT OF LOUISIANA

IN RE: CHRISTOPHER SCOTT HOVEN **CASE NO. 19-10514**

CHAPTER 7

PULL-A-PART LLC, Plaintiff

VERSUS **ADV. PROC. NO. _____**

CHRISTOPHER SCOTT HOVEN, Defendant

COMPLAINT ASSERTING NONDISCHARGEABILITY

NOW INTO COURT, through undersigned counsel, comes plaintiff, PULL-A-PART LLC, who asserts this adversary proceeding against debtor, CHRISTOPHER SCOTT HOVEN, regarding the dischargeability of debtor and further respectfully represents:

1.

Plaintiff, PULL-A-PART LLC, is a creditor of debtor by virtue of a deposit on an estimate for services to be performed, paid by the Plaintiff to Hoven's Heavy Equipment LLC, of which defendant, CHRISTOPHER SCOTT HOVEN, is the manager and registered agent, on or about August 7, 2018. The amount owed to plaintiff is the principal sum of $12,372.00, together with judicial interest from the date of demand and reasonable attorney's fees (as attached to a debt that is nondischargeable under 11 U.S.C. §523 and/or 11 U.S.C. §727) and court costs for the following reasons:

11. The Financial Statement was materially false when it was made. On April 14, 2025, a judgment for $212,000.00 had been entered against the Company in favor of a trade supplier, and the Company's cash balance on May 1, 2025 was less than $9,000.00.

12. The Debtor knew that the Financial Statement was false when he signed it. He caused it to be delivered to Plaintiff so that Plaintiff would rely on it in deciding whether to enter into the Lease.

13. Plaintiff reasonably relied on the Financial Statement. Plaintiff would not have entered into the Lease, or extended credit on the Equipment, had it known the true condition of the Company.

14. The Company paid $16,000.00 under the Lease and then stopped paying. Plaintiff sent a written notice of default on January 5, 2026. The Company and the Debtor did not cure the default.

15. Plaintiff's counsel sent the Debtor a written demand for payment of the balance on February 2, 2026. The Debtor did not respond to the demand and did not pay any part of the balance.

16. On his bankruptcy schedules, the Debtor listed Plaintiff's claim as an unsecured claim of $48,000.00. The Debtor did not disclose the April 14, 2025 judgment against the Company in his Statement of Financial Affairs.

17. Plaintiff has incurred attorney's fees and costs in attempting to collect the balance. Those fees and costs are recoverable under the Lease and are part of the debt excepted from discharge by this complaint.

10.

Debtor, defendant CHRISTOPHER SCOTT HOVEN, commingled the funds of Hoven's Heavy Equipment LLC with his personal funds by converting the funds of Hoven's Heavy Equipment LLC for his own personal use, in contravention of 11 U.S.C. §523(a)(4).

11.

Despite amicable demand, (made on January 22, 2019 and on April 3, 2019) Defendant, CHRISTOPHER SCOTT HOVEN, and Hoven's Heavy Equipment LLC have failed and refused to remit the balance due.

12.

Debtor, defendant CHRISTOPHER SCOTT HOVEN, filed a petition for bankruptcy under Chapter 7 on or about May 02, 2019, less than one year after the execution of the estimate on or about June 4, 2018, in contravention of 11 U.S.C. §727(a)(2)(A) and 11 U.S.C. §727(a)(7).

13.

Plaintiff herein reserves the right to supplement this complaint as additional information revealed by discovery may constitute a ground for denial of a discharge herein.

WHEREFORE, plaintiff prays that defendant/debtor be served and cited to appear herein and after all due proceedings are had that there be judgment in favor of plaintiff denying a discharge to the debtor herein under 11 U.S.C. §727(a) and/or 11 U.S.C. §523(a) and for any and all other general and equitable relief as this Court deems proper.

Baton Rouge, Louisiana this 12th day of August 2019.

Respectfully Submitted,
Andrew Murrell Law Firm

BY: _____
J. Andrew Murrell
Bar Roll Number: 34003
1055 Carondelet Street
Baton Rouge, LA 70815
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PLEASE SERVE DEFENDANT AT:

Christopher Hoven
Through his attorney
Greg Gouner
11750 Bricksome Avenue, Suite C
Baton Rouge, LA 70816

Dated: [date] Respectfully submitted,

WHEREFORE, plaintiff prays that defendant/debtor be served and cited to appear herein and after all due proceedings are had that there be judgment in favor of plaintiff denying a discharge to the debtor herein under 11 U.S.C. §727(a) and/or 11 U.S.C. §523(a) and for any and all other general and equitable relief as this Court deems proper.

/s/ [COUNSEL NAME] (La. Bar No. [number])
Counsel for Plaintiff Sample Creditor, LLC
Sample Law Firm, LLC
100 Example Street, Baton Rouge, Louisiana 70801
Telephone: (225) 000-0000
Email: counsel@example.com

Baton Rouge, Louisiana this 12th day of August 2019.

Respectfully Submitted,
Andrew Murrell Law Firm

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PLEASE SERVE DEFENDANT AT:

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Through his attorney
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